

Hasmat Ullah v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 26 July 2010 · WRIT - C No. - 43067 of 2010 · **Writ dismissed; petitioner relegated to Consumer Grievance Redressal Forum.**

HEADNOTE

A writ raising an electricity grievance against the Power Corporation was dismissed. The Division Bench held that the grievance could be redressed by the Grievance Redressal Forum constituted under the Electricity Supply Code of the Power Corporation (framed under the Electricity Act) and relegated the petitioner to that Consumer Redressal Forum.

FACTUAL SUMMARY

Hasmat Ullah filed Writ-C No. 43067 of 2010 in the Allahabad High Court against the State of Uttar Pradesh and others, seeking relief on an electricity grievance against the Power Corporation. Standing counsel and counsel for the Corporation appeared. The order does not record whether the dispute concerned billing, disconnection, a new connection, or any other supply complaint. The Division Bench of Prakash Chandra Verma and Ram Autar Singh JJ heard the matter on 26 July 2010 and disposed of the writ the same day without findings on the underlying complaint.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::CGRF

alternate remedy — Consumer Grievance Redressal Forum

HOLDING

Where an electricity grievance can be redressed by the Grievance Redressal Forum constituted under the Electricity Supply Code of the Power Corporation (framed under the Electricity Act), the High Court will not entertain a writ petition and will relegate the petitioner to that Consumer Redressal Forum. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE PETITIONER'S ELECTRICITY GRIEVANCE

Writ dismissed solely on availability of the Consumer Grievance Redressal Forum; no finding on the complaint. ¶ 1